

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
WAYNE NEWLAND,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JAVIER
ROMERO, SHIELD NUMBER 16084, AND
POLICE OFFICER JUSTIN SEGOT,
SHIELD NUMBER 7684,Defendants.
-----XIndex No.:
Date Purchased:Plaintiff designates New York
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
209 06 Nashville Blvd.
Cambria Heights, N.Y. 11411

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
December 13, 2016
TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
WAYNE NEWLAND
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER JAVIER ROMERO, SHIELD
NUMBER 16084 c/o
Transit District One
59th Street/Columbus Circle Subway Station
New York, New York 10019POLICE OFFICER JUSTIN SEGOT, SHIELD
NUMBER 7684 c/o
Transit District One
59th Street/Columbus Circle Subway Station
New York, New York 10019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
WAYNE NEWLAND,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER JAVIER
ROMERO, SHIELD NUMBER 16084, AND
POLICE OFFICER JUSTIN SEGOT,
SHIELD NUMBER 7684,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff WAYNE NEWLAND by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, respectfully alleges as follows:

1. That Plaintiff WAYNE NEWLAND is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.
2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
4. That at all times hereinafter mentioned, Defendant POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, was employed by Defendant CITY OF NEW YORK as a police officer.
5. That at all times hereinafter mentioned, Defendant POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

7. That at all times hereinafter mentioned, Defendant POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, was employed by Defendant CITY OF NEW YORK as a police officer.

8. That at all times hereinafter mentioned, Defendant POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendant POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

10. That on November 20, 2015, at approximately 11:00 p.m., Plaintiff WAYNE NEWLAND was at or near the intersection of 126th Street and Lexington Avenue, in the County, City, and State of New York when he noticed a cell phone lying on the sidewalk. Plaintiff WAYNE NEWLAND picked up the cell phone and, when none of the people in his vicinity claimed ownership, he held onto the phone and continued on his way. Plaintiff, while walking towards his intended destination, attempted to access the cell phone's home screen so that he could contact the cell phone's owner and return the phone. While Plaintiff was attempting the foregoing, the cell phone rang. Plaintiff WAYNE NEWLAND answered the cell phone, and asked if the caller was the owner of the phone. When the caller replied that he was the owner of the cell phone, Plaintiff asked the caller where he was. The caller replied that he was in a car on 132nd Street, Plaintiff stated that he was on 138th Street and 5th Ave, and that he would wait for the caller so he could return the phone to him.

11. That on November 20, 2015, at approximately 11:20 p.m., Plaintiff WAYNE NEWLAND was lawfully present at or near the intersection of 138th Street and Fifth Avenue in the

County, City and State of New York when a New York City Police Department patrol vehicle arrived at his location. Defendant POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, exited the police vehicle, approached Plaintiff, and asked Plaintiff if he was “the one with the phone”, or words to that effect. Plaintiff WAYNE NEWLAND replied that he was, and handed the cell phone to Defendant POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684.

Defendant POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, then asked Plaintiff WAYNE NEWLAND for identification, and after Plaintiff complied, the defendant police officer returned to the police vehicle. A few moments later, Plaintiff WAYNE NEWLAND was approached by Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, who asked Plaintiff how he came to be in possession of the cell phone. Plaintiff WAYNE NEWLAND explained what had happened, and after so doing, Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, stated that they were placing him under arrest.

12. That, at the aforementioned time and place, Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, handcuffed Plaintiff WAYNE NEWLAND and placed him under arrest, despite Defendants’ knowledge that they lacked reasonable grounds or probable cause to do so.

13. That, following his arrest, Plaintiff WAYNE NEWLAND was transported to the Transit District One Precinct (59th Street/Columbus Circle Subway Station, New York, New York 10019), and thereafter transported to Manhattan Central Booking (100 Center Street, New York, New York) where his arrest was processed.

14. That Plaintiff WAYNE NEWLAND was subsequently arraigned, and following said arraignment, was transported to Rikers Island.

15. That Plaintiff WAYNE NEWLAND was held from November 20, 2015, until he was released from custody on or about November 28, 2015, following the posting of bail.

16. That Defendants CITY OF NEW YORK, POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, initiated criminal proceedings against Plaintiff WAYNE NEWLAND despite Defendants' knowledge that they lacked probable cause to do so.

17. That, on or about December 3, 2015, Plaintiff WAYNE NEWLAND was charged with a parole violation for, upon information and belief, the aforementioned police contact, placed under arrest, arraigned and transported to Rikers Island.

18. That on March 4, 2016, Plaintiff WAYNE NEWLAND was acquitted of all charges (Criminal Court of the City of New York - New York County - Docket No. 2015NY075602).

19. That on or about April 29, 2016, within 90 days of the Plaintiff's acquittal of all criminal charges, but more than 30 days prior to the commencement of this action, Plaintiff WAYNE NEWLAND duly presented, served, and filed a Notice of Claim for malicious prosecution, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

20. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684.

21. That on July 25, 2016, pursuant to section 50-h of the General Municipal Law, Defendant CITY OF NEW YORK conducted a Municipal Hearing in this matter.

22. This action is commenced within one year and ninety days after the cause of action arose.

23. As a result of the foregoing, Plaintiff WAYNE NEWLAND sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST
UNDER 42 U.S.C. § 1983

24. Plaintiff WAYNE NEWLAND repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

25. That at the aforementioned time and place, Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, placed Plaintiff WAYNE NEWLAND under arrest despite Defendants' knowledge that they lacked probable cause to do so.

26. That Plaintiff WAYNE NEWLAND had not committed any offense and Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

27. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, were aware that probable cause did not exist for the arrest and detention of Plaintiff WAYNE NEWLAND and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff WAYNE NEWLAND and such actions were committed in bad faith.

28. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff WAYNE NEWLAND and such actions were committed in bad faith.

29. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff WAYNE NEWLAND was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments

thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

30. As a further result of the above-described acts, Plaintiff WAYNE NEWLAND was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT
UNDER 42 U.S.C. § 1983**

31. Plaintiff WAYNE NEWLAND repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

32. That Plaintiff WAYNE NEWLAND was falsely imprisoned from November 20, 2015, to November 28, 2015, and from December 3, 2015, until March 17, 2016, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

33. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, intended to confine Plaintiff WAYNE NEWLAND, and Plaintiff WAYNE NEWLAND was conscious of the confinement, and Plaintiff WAYNE NEWLAND did not consent to the confinement.

34. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff WAYNE NEWLAND and damaging Plaintiff WAYNE NEWLAND in his reputation and depriving him of his liberty.

35. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, all committed under color of their

authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff WAYNE NEWLAND suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER 42 U.S.C. § 1983**

36. Plaintiff WAYNE NEWLAND repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

37. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, misrepresented and falsified evidence before the District Attorney.

38. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, did not make a complete and full statement of facts to the District Attorney.

39. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, withheld exculpatory evidence from the District Attorney.

40. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, were directly and actively involved in the initiation of criminal proceedings against Plaintiff WAYNE NEWLAND.

41. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, lacked probable cause to initiate criminal proceedings against Plaintiff WAYNE NEWLAND.

42. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, acted with malice in initiating criminal proceedings against Plaintiff WAYNE NEWLAND.

43. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, were directly and actively

involved in the continuation of criminal proceedings against Plaintiff WAYNE NEWLAND.

44. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, lacked probable cause to continue criminal proceedings against Plaintiff WAYNE NEWLAND.

45. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, acted with malice in continuing criminal proceedings Plaintiff WAYNE NEWLAND.

46. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

47. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, the criminal proceedings were terminated in Plaintiff WAYNE NEWLAND' favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER NEW YORK STATE LAW**

48. Plaintiff WAYNE NEWLAND repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

49. On or about November 20, 2015, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, commenced a criminal proceeding against Plaintiff WAYNE NEWLAND, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

50. Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff WAYNE NEWLAND had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and

imprisonment of Plaintiff.

51. Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, were directly and actively involved in the initiation of criminal proceedings against Plaintiff WAYNE NEWLAND.

52. Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, lacked probable cause to initiate criminal proceedings against Plaintiff WAYNE NEWLAND.

53. Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, were motivated by actual malice in initiating criminal proceedings against Plaintiff WAYNE NEWLAND.

54. Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, misrepresented and falsified evidence before the District Attorney.

55. Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, did not make a complete and full statement of facts to the District Attorney.

56. Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, withheld exculpatory evidence from the District Attorney.

57. Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, were directly and actively involved in the continuation of criminal proceedings against Plaintiff WAYNE NEWLAND.

58. Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, lacked probable cause to continue criminal proceedings against Plaintiff WAYNE NEWLAND.

59. Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, were motivated by actual malice in

continuing criminal proceedings against Plaintiff WAYNE NEWLAND.

60. That, notwithstanding the perjurious and fraudulent conduct of Defendants, the criminal proceedings were terminated in Plaintiff WAYNE NEWLAND's favor.

AS AND FOR A FIFTH CAUSE OF ACTION FOR MUNICIPAL LIABILITY

61. Plaintiff WAYNE NEWLAND repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

62. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

63. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

64. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff WAYNE NEWLAND.

65. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff WAYNE NEWLAND as alleged herein.

66. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff WAYNE NEWLAND as alleged herein.

67. That Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, while acting under the color of state law, was directly and actively involved in violating Plaintiff WAYNE NEWLAND's constitutional rights.

68. That all of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, deprived Plaintiff WAYNE NEWLAND of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from unwarranted and malicious criminal prosecution;
- E. To be free from malicious abuse of process;
- F. Not to have cruel and unusual punishment imposed upon him;
- G. To receive equal protection under the law.

WHEREFORE Plaintiff WAYNE NEWLAND demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER JAVIER ROMERO, SHIELD NUMBER 16084, and POLICE OFFICER JUSTIN SEGOT, SHIELD NUMBER 7684, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
December 13, 2016



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
WAYNE NEWLAND
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

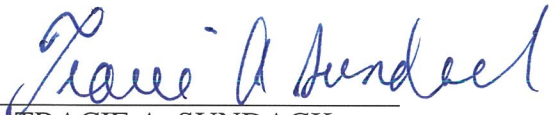
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York,
state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents
thereof; the same is true to my own knowledge, except for the matters therein alleged to be on
information and belief, and as to those matters I believe them to be true. The reason this
Verification is made by me and not by the Plaintiff is that the Plaintiff resides outside the County
where your affirment maintains her office. The grounds of my belief as to all matters not stated
upon my own knowledge are as follows: files maintained by my office and conversations with the
Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
December 13, 2016



TRACIE A. SUNDACK